GENERAL CONDITIONS OF THE CONTRACT

These General Conditions and any applicable supplementary general conditions apply to and are incorporated into the contract between Government of Yukon and the Contractor. The Parties acknowledge and agree to the following terms and conditions:

1.0 Definitions

1. For the purposes of this Contract:
    1. "Business Day" means a day that is not a Saturday, a Sunday or statutory holiday in the Yukon;
    2. "Contract" means undertaking by the Parties to perform their respective duties, responsibilities and obligations as prescribed in this Contract and includes, but is not limited to: any supplementary general conditions, specifications, appendices, schedules, and change orders and amendments thereto;
    3. "Contractor" means the person or legal entity engaged by YG and identified as such in this Contract, and includes the Contractor's authorized representative agreed to by YG in writing;
    4. "Work" means everything done or to be performed by or through the Contractor or under this Contract and any ancillary work or services related thereto; and
    5. "YG" or "Owner" means Government of Yukon and includes the Government of Yukon's authorized agent or representative.

2.0 Performance of the Work

1. The Contractor shall perform the Work in accordance with the terms of the Contract, and shall be solely responsible for supervising, managing, and coordinating the Work. The Contractor shall maintain good order and discipline among its employees, subcontractors, and agents engaged on the Work.
2. The Contractor shall provide and pay for all applicable: labour; materials; tools; equipment; utilities; safety plans, travel and accommodation costs; transportation, delivery, and carriage costs; custom duties and taxes or any other fees or other charges required by law; permits, inspections and regulatory approvals, and any other facilities and services required to perform the Work, unless otherwise explicitly stated in the Contract.
3. The Contractor shall perform the Work in a good, proper, workmanlike, and expeditious manner, and shall carry out its obligations under this Contract with the degree of care, skill, judgment and diligence that would reasonably be exercised by an experienced, skilled and prudent contractor supplying similar work or services for similar work or projects.
4. The Contractor represents and warrants that:
    1. the Contractor and its officers, employees, subcontractors, and agents are qualified and competent to perform the Work, and have the necessary skills, knowledge, certification, and ability to perform the Work; and
    2. all factual matters and materials submitted to YG are true and accurate, and that all estimates, forecasts, and other related matters involving judgment were prepared in good faith.
5. The Contractor shall protect the Work and YG's property and any adjacent property from damage and disturbance, which may arise from the Contractor's operations or performance of

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the Work or Contract, and to the extent appropriate to the nature of the Work, keep the site of the Work in a safe, clean, and tidy condition.

6. The Parties will, in writing, each designate an individual to act as their representative who will have authority to communicate and exchange information between the Parties.

7. Upon request by YG, the Contractor shall, in a form and with content reasonably acceptable to YG, prepare and submit to YG, a schedule for the Work that coincides with any: payments, major activities, deliverables (including any Yukon First Nation Participation Plan/Agreement), or dates stated in the Contract and indicates the timing of such activities, deliverables, and dates in relation to the Work. Once approved in writing by YG, the Contractor shall perform the Work in accordance with such schedule and terms of the Contract.

8. YG shall at all times have access to the Work and be permitted to examine the Work, and any products, materials, and equipment used or to be used in the performance of the Work.

9. If there is a defect, error or omission in the Work, or the Contractor fails to perform or refuses to comply with the terms of the Contract, upon notice from YG, the Contractor shall, in consultation with YG, promptly and fully rectify such defect, error, omission, non performance, or non-compliance, at the Contractor's sole expense, within 5 calendar days from notice by YG or, if the nature of the defect is such that it cannot be rectified within 5 calendar days, such other reasonable timeframe as agreed to by the Parties, acting reasonably. If the Contractor fails to rectify such defect, error, omission, non performance, or non-compliance, then YG, may, at its discretion: holdback or deduct a reasonable amount to correct or remedy such defect, fault, or non-compliance in the Work or under the Contract and any related costs or expenses from any amount or payment due to the Contractor; or exercise any other rights or remedies under this Contract or in law.

10. The Contractor shall manage, supervise, and be solely responsible for the work of its subcontractors. Any work to be performed by a subcontractor shall not relieve or discharge the Contractor from its obligations under this Contract. Before commencing the Work or upon request by YG, the Contractor shall provide YG with the names of all subcontractors that will be used in the performance of the Work. The Contractor shall obtain YG's prior written consent before adding or changing any subcontractors.

11. The Contractor shall ensure that all goods, products, or materials required or provided for the Work shall be new, unused, and in a safe, serviceable, good and clean condition, unless otherwise explicitly stated in the Contract, and shall conform to all current applicable specifications, standards and laws. Any substitution of goods, products, and materials specified in the Contract shall be pre-approved in writing by YG, and shall be of a quality consistent with those specified, and their use acceptable to YG, acting reasonably. The Contractor shall also ensure that all equipment provided or used in the performance of the Work shall be in a safe, serviceable, good and clean condition, unless otherwise explicitly stated in the Contract, and shall conform to all current applicable specifications, standards and laws.

12. The Contractor shall provide YG, with all available warranties and guarantees related to the Work. Such warranties shall be no less favourable than any published warranty or warranty generally available to the public. The Contractor shall maintain all available warranties and guarantees in favour of YG, and ensure that all such warranties and guarantees are in YG's name as beneficiary.

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13. If there is a conflict with the terms of the Contract, the terms establishing the higher quality, manner or method of performing the Work, using the more stringent standards, will prevail, with the intent that the provisions which produce the higher quality with the higher levels of safety, reliability, durability, performance and service will prevail.

14. The Contractor shall be fully and solely responsible for overseeing and complying with all health and safety laws applicable to the Work, including any requirements under the *Workers' Safety and Compensation Act*, SY 2021, c.11 and its regulations (as amended) ("WSCA"). The Contractor shall have full and sole control of the Work for the purposes of health and safety and the WSCA, including: taking all precautions and adopting and carrying out all work techniques, procedures and systems to prevent or reduce the risk of injury or death to other employers' workers and other persons in relation to the Work or at or near the workplace.

15. The Contractor shall implement and comply with any applicable Yukon First Nation Participation Plan or Agreement ("YFNPA") in the performance of the Work and Contract and fulfill any commitments or obligations thereunder, including any labour or subcontracting commitments, which shall be deemed to form part of the Work and this Contract. Upon request by YG, the Contractor shall, in a form and with content reasonably acceptable to YG and within the timeframe specified by YG in the request, provide YG with sufficient evidence that it has completed or complied with its YFNPA, including: a statutory declaration from an authorized representative of the Contractor that it has fulfilled all the terms and obligations under its YFNPA, contact information for any Yukon First Nation Business listed or proposed by the Contractor related to their YFNPA, or verification of the wages, amount, described services or dollar value of any proposed Yukon First Nation labour or subcontractor commitments. If the Contractor fails to sufficiently demonstrate or prove that it has properly completed or complied with the terms and obligations of its YFNPA, then YG may, at its discretion, be entitled to: withhold any amounts payable to the Contractor or deduct from any amounts payable to the Contractor an amount to properly perform such terms and obligations and cover any liability or additional costs which YG may incur resulting from the Contractor's failure to complete or comply with such terms or obligations.

16. The Contractor acknowledges and agrees that its performance of this Contract and the Work is subject to review and evaluation under Government of Yukon's Vendor Performance Review Program ("VPR"). For further information on the VPR process and evaluation criteria or for any inquiries, please email: contracts@yukon.ca. The Contractor's scoring and rating resulting from the VPR may be used to: determine the Contractor's eligibility for future Government of Yukon procurement or contracting opportunities, evaluate the Contractor for any Government of Yukon procurement or contracting opportunities, and/or be considered in any decisions by Government of Yukon to purchase goods or services or award a contract or work to the Contractor. The Contractor shall, at its own cost, fully participate in and cooperate with YG during the VPR process, and upon request by YG, promptly provide any relevant information, documents, or materials that are reasonably necessary to: complete the VPR evaluation process within any timeframes stated under the VPR, determine or finalize the Contractor's scoring or rating under the VPR process, and/or resolve any disagreement or contestation of the Contractor's score or rating under the VPR process.

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3.0 Payment

1. The amounts stated in the Contract shall not be exceeded without the prior written approval of YG. All amounts under this Contract are in Canadian funds, unless otherwise explicitly stated in the Contract. The actual amount payable will be determined based on the Work completed in accordance with the Contract, and invoices received and approved by YG.
2. The Contractor shall submit an invoice or application for payment, in a form and with content acceptable to YG, acting reasonably. Amounts invoiced on account of costs or expenses for Work shall not exceed the value of the Work performed before the date of invoice submission, unless otherwise agreed to by the Parties in writing or explicitly stated in this Contract. In the event YG, disputes an amount invoiced by the Contractor, YG may withhold the disputed portions of the payment and will pay the undisputed portion within the prescribed time. Upon request by YG, the Contractor shall provide a statutory declaration and any supporting information or materials to support the invoice or application for payment.
3. YG's obligation to pay the Contractor under this Contract is subject to the following:
   1. the *Financial Administration Act* (Yukon), RSY 2002, c. 87 and its regulations (as amended); and
   2. the Contractor abiding by the terms and conditions of this Contract.
4. YG shall pay the Contractor any undisputed amounts within 30 calendar days from the date of receipt of an invoice, subject to the terms of the Contract. Pursuant to the Yukon's Interest Regulations (OIC 1986/039, as amended), if YG fails to make payment to the Contractor within 30 calendar days from the date of the satisfactory receipt of an invoice, interest will be paid at the current prime rate of the Bank of Canada on such unpaid amounts provided such amounts are greater than $100. Such interest will be calculated and added to any unpaid and undisputed amounts monthly.
5. The Work under this Contract is being purchased by YG for a public purpose with public money and is not subject to the Goods and Services Tax or any Harmonized Sales Tax ("GST/HST") under authority number R107442840. The Contractor shall not add or include the GST/HST in any invoices for the Work performed under this Contract, and is solely responsible for claiming any input tax credits to which Contractor may be entitled.
6. In addition to any rights YG may have under this Contract, in law or in equity, YG may deduct or set off or deduct from payments owing to the Contractor any liability arising from the Contractor to YG under this Contract or otherwise against any liability arising from YG to the Contractor.

4.0 Changes to the Contract

1. Changes to the Contract and the Work must only be made through a written change order agreed to by both Parties or their duly authorized representatives. No change to the Work or Contract shall be made without a written change order. Any change to the Work or Contract by written change order shall be final and total compensation for and inclusive of all costs and expenses arising from or related to the change in the Work or Contract.
2. In order to provide a sufficient opportunity for YG to assess and address any impact or cost related to the Work, the Contractor shall promptly give written notice to YG of any claim related to a change in the Work or Contract, including, but not limited to: additional costs or expenses or delays to perform the Work. Such notice must include sufficient detail and supporting information in order for YG to reasonably assess the claim and be provided to YG no later than 5

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calendar days from the date on which the Contractor becomes aware or ought to have reasonably become aware of the claim.

3. If the Contractor fails to provide such notice, or proceeds with any change in the Work or Contract without a written change order, no payment, other than payment that is expressly stated in the Contract shall be made to the Contractor for any amount owing or any extra expense, loss, damage, cost, or compensation incurred or sustained by the Contractor for any reason. If YG and the Contractor do not agree on the proposed change or amount of the change to the Work or Contract, the matter shall be resolved pursuant to the dispute resolution clause under this Contract.

4. If there is any reduction in costs or expenses related to the performance of the Work or this Contract, then YG shall be entitled to a credit/rebate or decrease for such costs or expenses on the total amount payable under the Contract and any related costs or expenses to perform the Work or this Contract.

5.0 Insurance and Liability

1. Unless otherwise explicitly stated in the Contract, without restricting any obligations or liabilities of the Contractor under the Contract, the Contractor shall provide, pay for and maintain the following insurance with minimum policy limits as specified below, in forms and with insurers acceptable to YG:
   1. Commercial General Liability Insurance with a limit not less than $2,000,000.00 per occurrence covering bodily injuries (including death, sickness or disease), personal injury, and property loss or damage, which shall at a minimum cover liabilities associated with or arising from the Contractor's premises, property and operations, and include, but is not limited to: contingent liability covering subcontractors; tort liability; and contractual liability covering the Contractor's liability under this Contract with YG. The Contractor shall include YG as an additional insured party on its Commercial General Liability Insurance; and
   2. where applicable, automobile liability insurance in accordance with all applicable legislation, covering all vehicles used in the performance of the Work.

2. The Contractor shall pay all deductibles for any of the insurance policies required under this Contract. Upon request by YG, the Contractor shall submit proof of insurance coverage to the reasonable satisfaction of YG. The Contractor shall immediately notify YG of any lapse, cancellation, or material change to the Contractor's insurance coverage.

3. The Contractor shall indemnify and hold harmless YG from and against all claims, liabilities, demands, or costs (including reasonable legal costs) to the extent arising from or related to: errors, omissions or negligence by the Contractor; breach of this Contract or, breach of any statutory or professional duty by the Contractor; or any injury (including death) to persons, damage to or loss of property, infringement of rights (including intellectual property rights) or any claims, liabilities, demands, or costs in any way to the extent arising from or related to the fault or legal responsibility of the Contractor. For greater certainty, the term "Contractor" for the purposes of this section includes the Contractor and its officers, employees, Subcontractors, agents, and successors or assigns. This indemnity shall survive the expiry or termination of this Contract.

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6.0 Confidentiality and Access to Information and Privacy

1. If YG designates any information, documents, records or other materials as confidential or proprietary (whether express or implied) ("Confidential Materials"), the Contractor shall treat the Confidential Materials as confidential, and shall not use, copy, disclose, permit to be disclosed, or otherwise communicate the Confidential Materials except: with the prior written consent of YG; or as required by law provided that the Contractor gives written notice to YG promptly upon becoming aware of such a requirement. The Contractor will ensure that its facilities, systems and files are secure and that access to any Confidential Materials are strictly controlled.
2. The Contractor shall ensure that any employees, agents, subcontractors or any third party with whom the Contractor shares or provides access to or possession of the Confidential Materials, shall, in favour of YG, be bound by the same terms or terms no less stringent than the confidentiality terms of this Contract.
3. The Contractor aknowledges that any records, information, documents, or materials provided by the Contractor are subject to applicable access to information legislation, including: the *Access to Information and Protection of Privacy Act* SY 2018 c.9 and its regulations (as amended) ("ATIPP"), and may be disclosable by YG under ATIPP. No records, information, documents or materials provided by or through the Contractor are subject to confidentiality or non-disclosure by YG except to the extent expressly agreed to in writing by YG. In addition, if the Contractor wishes YG to treat any records, information, documents or materials as confidential or non-disclosable, it must make a formal request for same and must provide YG with accurate, complete and detailed information, materials, or evidence sufficient to support the Contractor's request for confidentiality or non-disclosure and to meet any applicable legislative requirements. Any purported undertaking for non-disclosure or confidentiality by YG to the Contractor that conflicts with a legislative requirement or that is not explicitly agreed to in writing by YG, is void and unenforceable, and YG shall not be liable in any way for such undertaking.
4. For the purposes of this section, the terms: "personal information" has the same meaning as defined under the ATIPP, and "personal health information" has the same meaning as defined in the *Health Information Privacy and Management Act*, SY 2013, c. 16, and its regulations (as amended) ("HIPMA"). The Contractor acknowledges and agrees that:
    1. the Contractor will comply with any applicable provisions of ATIPP and HIPMA, including: any applicable obligations or requirements where the Contractor is a "service provider" as defined under ATIPP, or a "custodian" or "agent" as defined under HIPMA;
    2. any personal information or personal health information provided to the Contractor by YG or collected by the Contractor as agent of YG remains the sole property of YG, and, upon the expiry or termination of this Contract or upon request by YG, the Contractor will promptly destroy or return to YG all personal information or personal health information provided by or under the control of YG, without making any copies, except where the Contractor is specifically authorized and required by law or professional obligation to retain such information;
    3. the Contractor will not collect, use, disclose or permit to be collected, used or disclosed any personal information or personal health information provided by or under the control of YG or collected by the Contractor as a "service provider" as defined under ATIPP or agent of the

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Owner for any purpose other than as necessary for the performance of the Work, Contract, or to comply with the law;

4. the Contractor will apply administrative, technical and physical measures to ensure that its facilities, systems and files are secure and that access to any personal information or personal health information is secure, strictly controlled, limited to those persons with a need to access such information, and protected by making reasonable security arrangements against unauthorized access, collection, use, disclosure or disposal of such personal information or personal health information, including: ensuring that its officers, employees, agents, Subcontractors or any third party with whom the Contractor shares or provides access to or possession of the personal information or personal health information complies with the Contractor's obligations under section 6.3, and is bound, in favour of YG, by the same terms or terms no less restrictive than the terms under section 6.3, and the Contractor shall, at its own cost, take any action or execute any documents required to give effect to such terms;
5. the Contractor will fully cooperate with and assist YG for the purposes of the Contractor or YG complying with or meeting any obligations or requirements under ATIPP, HIPMA, or section 6.0; and
6. the Contractor will notify YG in writing as soon as reasonably possible of any breach of section 6.0 or any applicable statutory provision under ATIPP or HIPMA, and promptly take all reasonable steps to mitigate the breach and prevent any further harm arising from the breach.

5. Section 6.0 – Confidentiality and Access to Information and Privacy shall survive the expiry or termination of this Contract.

7.0 Ownership of Deliverables

1. YG shall solely own all rights, title and interest to the works, materials, documents, and deliverables to be produced or delivered in the performance of the Work and under this Contract ("Deliverables"), unless otherwise explicitly agreed to by the Parties in writing. The Contractor shall promptly inform YG as to what Deliverables, have arisen from or been created or produced from the Work or this Contract. Unless otherwise explicitly stated in this Contract, the Contractor shall fully, irrevocably, and permanently assign and transfer to YG all Intellectual Property in and to Deliverables. The Contractor shall, in favour of YG, fully, irrevocably and permanently waive all moral rights arising from or in relation to the Deliverables, including: the right of paternity, integrity, and association. The Contractor represents and warrants that it has the full authority to assign and transfer any of the rights to the Work or Deliverables under this Contract.
2. The Contractor represents and warrants that it has not violated any rights related to Intellectual Property, contractual or property rights, or any other rights in the performance of the Work or Contract. The Contractor shall promptly provide YG with written notice upon being aware of any infringement of rights arising from the Work or Contract, and immediately take all reasonable steps to mitigate any damages to YG and remedy the infringement of rights to ensure that its obligations under this Contract are fulfilled.
3. For the purposes of this Contract, "Intellectual Property" means any patent rights, copyrights, trade secrets, trade names, trademarks, service marks, industrial designs, moral rights, and any

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other similar rights or intellectual property right recognized under the laws of Canada, any other jurisdiction, or any international conventions or treaties.

4. Section 7.0 – Ownership of Deliverables shall survive the expiry or termination of this Contract.

8.0 Dispute Resolution

1. In the case of a dispute, the Parties shall make all reasonable efforts to resolve the dispute by amicable negotiations in a respectful and confidential manner.

9.0 Conflict of Interest

1. The Contractor:
   1. shall not influence, seek to influence, or otherwise take part in a decision of YG, directly or indirectly, knowing that the decision might further their private or personal interests;
   2. shall not provide or accept any commission, discount, allowance, payment, gift, or other benefit that is connected, directly or indirectly, with the performance of its duties related to the Contract, that causes, or would appear to cause, a conflict of interest; and
   3. shall have no financial or personal interest in the business, interest group, or organization of a third party that causes, or would appear to cause, a conflict of interest in connection with the performance of its duties related to the Contract, and if such interest is acquired during the term of the Contract, the Contractor shall promptly declare it to YG and take such action as required to eliminate the conflict of interest and prevent future occurrences of the conflict of interest. Such conflict of interest will not relieve the Contractor of its obligations under the Contract, including under this section.

10.0 Default, Termination or Suspension

1. In addition to any other right or remedy the Owner may have under this Contract, if the Contractor neglects to properly perform the Work or fails to perform or refuses to comply with the terms of the Contract, YG may, without prejudice to any other right or remedy YG may have, give the Contractor written notice that it is in default of its obligations and instruct the Contractor to correct the default within 5 calendar days immediately following the receipt of such notice or such other time period as may be agreed to in writing by the Parties. If the default cannot be corrected within the 5 calendar days or in such other time period as agreed to by the Parties, then YG may, without prejudice to any other right or remedy YG may have, do one or more of the following:
   1. terminate the Contract immediately upon written notice to the Contractor;
   2. suspend the Work under the Contract;
   3. reduce, set off, or deduct payment under the Contract;
   4. terminate or discontinue the Contractor's right to perform the Work in whole or in part and have another contractor perform the Work; or
   5. take any action deemed necessary by the YG to perform the Work or Contract.
2. In the case of suspension or termination of the Work or Contract, the Contractor shall continue to discharge any outstanding obligations under this Contract until the actual date of suspension or termination, and upon request by YG provide YG with any records, materials, information or documents related to the Work. The Contractor shall arrange for reasonable protection of the Work and make no further commitments in relation to the Work or this Contract, and shall

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cancel or otherwise reduce, to the extent reasonably possible, the amount of any outstanding commitments in relation to the Work or this Contract, unless otherwise agreed to by the Parties.

3. Upon 5 calendar days' prior written notice, YG may suspend the Work or terminate the Contract for its convenience at any time and without cause, despite whether the Contractor is in default or not. In the event of suspension or termination pursuant to this section, YG shall pay to the Contractor for work actually and properly performed up to the date of suspension or termination in accordance with the terms of the Contract together with all reasonable and proper costs directly incurred by the Contractor during the period prior to the suspension or termination that cannot be mitigated by the Contractor using all reasonable efforts, subject to the Contractor providing YG with sufficient and detailed proof of such costs or expenses. Any disputes in relation to such costs or expenses shall be resolved in accordance with the dispute resolution clause under the Contract.

11.0 Notice

1. The Parties shall provide addresses for any notices under this Contract. Notices will be sent to the address provided by the other Party. The delivery of a notice may be by: in person by hand, courier, mail, or electronic mail. A notice delivered by one Party in accordance with this Contract will be deemed to have been received by the other Party:
   1. if delivered in person or by courier, on the date of delivery;
   2. if sent by mail, it shall be deemed to have been received 5 calendar days after the date on which it was mailed; or
   3. if sent by electronic mail, it shall be deemed to have been received on the date of its transmission if there is no indication of failure of receipt communicated to the sender and the date of transmission is a Business Day and received at the place of receipt during the hours of 8:00 am to 5:00 pm, and if not received on a Business Day or during such hours, then it shall be deemed to have been received at the opening of business at the place of receipt on the next Business Day following the transmission thereof.

   Contact information for a party may be changed by notice to the other party setting out the new address in accordance with this clause.

12.0 General

1. For greater certainty, the Contractor is an independent contractor, and except for the purposes of ATIPP (where applicable), nothing in this Contract shall create the relationship of employer and employee or principal and agent between the Parties. Nothing in this Contract shall create the relationship of partnership or joint venture between the Parties. All personnel or subcontractors engaged by the Contractor to perform the Work or Contract are at all times the sole responsibility of the Contractor.
2. The Contractor will not, without the prior written consent of YG, assign, either directly or indirectly, any right, benefit, or obligation of the Contractor under this Contract and such assignment will be considered void. Any assignment may be subject to approval under the Yukon Assignment Regulations OIC 1984/201.
3. No action or failure to act by the Parties shall constitute a waiver of any right or duty afforded to them under the Contract, nor shall any such action or failure to act constitute an approval of or

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acquiescence in any breach thereunder, except as may be specifically agreed to in writing by the Party.

4. Each provision of this Contract will be valid and enforceable to the fullest extent permitted by law. If any provision of this Contract is held to be invalid, unenforceable or illegal to any extent, such provision may be severed and such invalidity, unenforceability or illegality will not prejudice or affect the validity, enforceability and legality of the remaining provisions of this Contract.

5. The Contractor shall comply with all applicable laws, YG policies, and standards in the performance of the Work and this Contract, and shall ensure that its subcontractors, officers, employees, and agents comply with such laws, policies, and standards in the performance of the Work and Contract. References in this Contract to laws, regulations, and codes are considered to be references to the latest published version. Upon request by YG, the Contractor shall provide proof of compliance with any applicable law, policy, or standard to the reasonable satisfaction of YG, including, but not limited to: proof of a valid business license(s) or registration under the Yukon *Business Corporations Act* RSY 2002, c. 20 or the *Partnership and Business Name Act*, RSY 2002, c. 166, and proof of a valid "Letter of Compliance" from the Yukon Workers' Compensation Health and Safety Board.

6. This Contract does not operate as a permit, license, approval or other statutory authority which the Contractor may be required to obtain from the Government of Yukon or any of its agencies in order to perform the Work or this Contract. Nothing in this Contract is to be construed as interfering with the exercise by the Government of Yukon or its agencies of any statutory power or duty or make Government of Yukon liable for any exercise of a statutory power or duty. Government of Yukon shall not be liable in any way for any additional cost or expense or delay related to or arising from the exercise or enforcement of or any failure to exercise or enforce any statutory duty, function, or power by the Government of Yukon or its agencies. .

7. The Parties shall execute such further documents and give such further assurances from time to time as are reasonably required to give effect to this Contract or the clauses therein.

8. This Contract will be deemed to have been made in and will be governed, interpreted and enforced by the laws of the Yukon without regard to conflict of law principles that would impose a law of another jurisdiction, and both Parties irrevocably submit and attorn to the exclusive jurisdiction of the courts in Yukon.

9. Time is of the essence in this Contract.

10. This Contract shall be binding upon the Parties hereto and their lawful heirs, executors, administrators, successors and assigns.

11. This Contract includes: the General Conditions, specifications and scope of work, and where applicable: any additional contract details, Supplementary General Conditions, appendices, and schedules, and constitutes the entire agreement between the Parties in respect of the subject matter of this Contract and supersedes all prior representations, negotiations, communications, and other agreements in respect of it (whether written or oral). Where a conflict exists between these General Conditions and any Supplementary General Conditions, the Supplementary General Conditions will govern.

12. Each Party represents and warrants that it has full power and authority to enter into, perform, and execute this Contract, and that each person signing this Contract on behalf of a Party has

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been properly authorized and empowered to enter into and execute this Contract. This Contract may be executed in counterparts, each of which will be deemed as an original and all of which will constitute one and the same document.

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